

Amendment No. 1 to HB1449

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1474

House Bill No. 1449*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 55-10-501(1), is amended by adding the following as a new subdivision:

(F) The use of one (1) or more motor vehicles for the purpose of performing motor vehicle drifting stunts or reckless driving for spectators;

SECTION 2. Tennessee Code Annotated, Section 55-10-501(1)(E), is amended by deleting "made orally, in writing, or otherwise" and substituting "made orally, on a social media platform, in writing, or otherwise".

SECTION 3. Tennessee Code Annotated, Section 55-10-501, is amended by deleting subdivision (2) and substituting:

(2) "Participant" means a person who operates a motor vehicle upon the public highways of this state, or that of any municipality or political subdivision thereof, for the purpose of drag racing, and also any person who arranges for, organizes, promotes, supervises, or in any way and manner sets in motion any drag racing, regardless of whether or not such person may be the operator of, a passenger in, or a spectator of any motor vehicle participating in drag racing; and

SECTION 4. Tennessee Code Annotated, Section 55-10-501, is amended by adding the following as a new subdivision:

() "Drifting" means the act of steering a vehicle in a turn in an attempt to make the rear wheel or wheels of the vehicle lose traction and create a controlled or uncontrolled skid sideways;

SECTION 5. Tennessee Code Annotated, Section 55-10-502(a), is amended by deleting "shopping center, trailer park" and substituting "shopping center, commercial property, trailer park".

SECTION 6. Tennessee Code Annotated, Section 55-10-502, is amended by deleting subsection (c) and substituting:

(c) A motor vehicle used to commit the offense of drag racing or to flee after the commission of the offense of drag racing is:

(1) Subject to being impounded for the purpose of collecting evidence pertaining to the offense. All towing and impounding fees must be assessed against the person charged with a violation of subsection (a); and

(2) Upon conviction for the offense, subject to seizure and forfeiture as provided in title 40, chapter 33, part 1.

SECTION 7. Tennessee Code Annotated, Section 55-10-502, is amended by adding the following as a new subsection:

(d) A law enforcement officer who has arrested a person for the commission of the offense of drag racing shall not issue a citation to the arrested person in lieu of the continued custody and the taking of the arrested person before a magistrate.

SECTION 8. Tennessee Code Annotated, Section 39-13-103(b), is amended by adding the following new subdivision (b)(5) and redesignating the current subdivision (b)(5) as subdivision (b)(6):

(5) Reckless endangerment by drag racing, as defined in § 55-10-501, is a Class E felony.

SECTION 9. This act takes effect July 1, 2026, the public welfare requiring it.